

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

HASSAN ALTO,

Plaintiffs,

-against-

SUMMONS

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER -- QURBAN
FARIAD, SHIELD NO.: 2626 and
police officers whose names are
yet unknown,

INDEX NO. :

Defendants.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if, the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: January 28, 2015
Defendants' address: 1 Police Plaza
New York, NY


ELLIOT H. FULD
930 Grand Concourse-Suite 1G
Bronx, NY 10451
(718) 410-4111

Notice: The object of this action is one for monetary damages due to false arrest, false imprisonment, malicious prosecution and federal civil rights violations.

Upon your failure to appear, judgment will be taken against you by default for the sum \$2,000,000.00 with interest from January 26, 2014 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

HASSAN ALTO,

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER QURBAN FARIAD, SHIELD
NO.: 2626 and police officers
whose names are yet unknown,

INDEX NO.:

Defendants.

HASSAN ALTO, by his attorney, Elliot H. Fuld, complains of the
defendants and allege, upon information and belief as follows:

1. HASSAN ALTO was, at the times of the incident described in this
Complaint, a resident of the City and State of New York, County of
Bronx.
2. As yet unnamed police officers were and at all times stated herein
and upon information and belief, are police officer with the New York
City Police Department with regards to the incidents described
herein.
3. As yet unnamed police officers were acting within the scope of

their employment with the New York City Police Department with regards to the incidents described herein.

4. That at all times stated herein, these unnamed police officers, as employees of the New York City Police Department, were acting as agents, servants and/or employees of THE CITY OF NEW YORK.

5. THE CITY OF NEW YORK at all times herein mentioned, was and still is a municipal corporation, duly organized and existing in accordance with the laws of the State of New York.

AS AND FOR A FIRST CAUSE OF ACTION

6. On or about January 26, 2014, police officers forcibly seized and detained the Plaintiff herein in the New York County.

7. After detaining the Plaintiff, police officers arrested the Plaintiff for unlicensed operation of a vehicle.

8. The Defendants alleged to the Court that there was an existing bench warrant for Plaintiff under New York County Docket number 2008NY011143. Plaintiff had previously been stopped, detained and arrested for that same bench warrant on several occasions and was

ultimately was released each time when the Defendants realized Plaintiff was not the person sought in that bench warrant.

9. The Docket number 2008NY011143, which contained charges of assault, possession of narcotics, reckless driving and leaving the scene of an accident, were lodged against another person who was not the Plaintiff. At the time of the arrest and detention on January 24, 2014, those police officers who were present were aware or should have been aware that the Plaintiff was not the person sought in that warrant.

10. The arrest and detention of the Plaintiffs by the Defendants on January 26, 2014 resulted in additional incarceration of Plaintiff and numerous court appearances because of the bench warrant on the 2008 case.

11. On July 31, 2014, Plaintiff was acquitted of all criminal charges stemming from the false arrest that occurred as aforesaid when the District Attorney of New York County requested that the Court, (Peterson, J.) dismiss all charges against HASSAN ALTO.

12. On or about August 1, 2014, Plaintiff, by counsel, served upon the Comptroller of the City of New York, Notices of Claim as required

by the General Municipal Law which was delivered by certified mail, receipt number 7011-0470-0001-4765-2452.

13. That more than thirty (30) days have elapsed since the service of that Claim and the adjustment or payment thereof has been neglected or refused. That the Defendants never assigned the case a claim number and never requested that Plaintiff appear for an examination under section 50-h of the General Municipal Law.

14. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based, which cause of action accrued upon the arrest of January 26, 2014 and dismissal of all charges on July 31, 2014.

15. After Plaintiff's false arrest on January 26, 2014 and the malicious prosecution which followed, Plaintiff was required to make at least eight (8) appearances in Criminal Court.

16. That during the pendency of those charges, the Defendants were well aware that Plaintiff had not committed any crime and that there was no bench warrant issued for Plaintiff.

17. Irrespective of that, the Defendants continued to pursue

criminal charges against Plaintiffs, seeking to have the Plaintiffs plead guilty to a lesser charge.

18. Plaintiffs refused to plead guilty and July 31, 2014, all charges were dismissed.

19. The Defendants' prosecution of Plaintiffs were conducted with malice or with such reckless disregard for the true set of facts underlying the "complaint" that said reckless disregard constituted malice.

20. In view of the foregoing, Plaintiffs has been damaged in the amount of Two Million (\$2,000,000.00) Dollars.

AS AND FOR A SECOND CAUSE OF ACTION

21. Plaintiffs repeat all the allegations contained in paragraphs "1" through "20" inclusive as though more fully set forth herein.

22. The Defendants, their agents, servants and/or employees, were acting "under color of state law" as defined in 42 U.S.C. 1983 et seq. in committing the acts alleged herein.

23. Prior to and subsequent to this incident as aforesaid, the Defendants have evinced a practice and procedure of detaining and seizing young persons of Hispanic and/or minority descent without cause or justification and of being lazy, incompetent, uncaring and intentionally procrastinating in investigating claims that arrests of persons such as Plaintiff are improper and incorrect.

24. The Defendants have made it their custom and practice to do so and in the process routinely deprived Plaintiff and other similarly situated of their civil rights.

25. In performing that acts as aforesaid, the Defendants deprived Plaintiffs of their civil and constitutional rights as defined by 42 U.S.C. 1983 et seq and the law interpreting that section.

26. As a result of the foregoing, the Plaintiffs have been damaged in the amount of Two Million (\$2,000,000.00) Dollars.

WHEREFORE, Plaintiffs demand of the Defendants as follows:

- a. On the First Cause of Action, the sum of \$2,000,000.00; and
b. On the Second Cause of Action, the sum of \$2,000,000.00; and
For punitive damages in the amount of \$1,000,000.00.

Dated: January 28, 2015

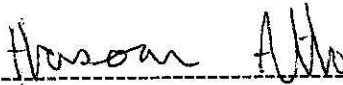

Elliot H. Fuld
Attorney for Plaintiffs
930 Grand Concourse-Suite 1G
Bronx, New York 10451
(718) 410-4111

STATE OF NEW YORK
COUNTY OF THE BRONX: ss

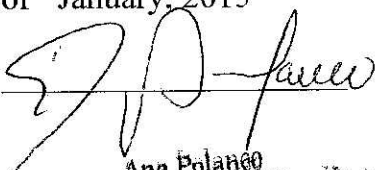
HASSAN ALTO, being duly sworn, deposes and says:

I am the Plaintiff herein, and I state and verify that I have read the attached Verified
Complaint and that the statements contained in that Complaint are true or are, upon
information and belief, accurate.

Dated: January 28, 2015


HASSAN ALTO

Duly sworn to this 28th day
of January, 2015


Ana Polanco
Notary Public State of New York
No 01PO6133973
Qualified in Bronx County
Commission Expires Sept 19, 2017